

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC ET AL.,
RESPONDENTS.

**COMPLAINANT TPG PRESSURE, INC.'S REPLY TO RESPONDENTS'
JOINT MEMORANDUM OF EXCEPTIONS TO INITIAL DECISION**

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TABLE OF CONTENTS

SUMMARY OF ARGUMENT	1
FINDINGS OF FACT AND CONCLUSIONS OF LAW	2
STANDARD OF REVIEW	2
LAW AND ARGUMENT	3
I. The Record Supports the Conclusion that Respondents Withheld Three of TPG’s Containers to Coerce Payments for Other Shipments, and That Such Conduct Proximately Caused Damages.....	3
A. The Evidence Supports The Finding That Respondents Charged TPG for Demurrage For The Containers In Question.....	5
B. Respondents Delayed Delivery to TPG to Coerce Payment of Unrelated Invoices	7
C. The Chronology Supports TPG’s Losses	8
II. The Record Supports the Conclusion That Respondents Had a “Practice” of Engaging in Coercive Collection Practices	8
III. The ID Correctly Determines That Respondents Unlawfully Exercised Their Lien Rights, Which Are Improper as a Matter of Law and Commission Precedent.....	11
A. Regardless of Whether the Parties Contractually Agreed to Epic’s Lien, the Lien Is Unenforceable.....	11
B. The ID Is Correct in Concluding That Epic’s Exercise of the Lien Is Not Consistent with the Incentive Principle	12
C. The ID Correctly Finds That Respondents Held Cargo to Obtain Additional Fees or to Collect an Unreasonable Debt.....	13
CONCLUSION.....	14

TABLE OF AUTHORITIES

Cases

<i>Adenariwo v. BDP Int’l</i> , Docket No. 1921(I), 2013 WL 12618258 (SO Mar. 7, 2013) (“ <i>Adenariwo (SO)</i> ”), <i>aff’d</i> 2014 WL 13110647 (FMC Feb. 20, 2014) (<i>Adenariwo (FMC)</i>), <i>partially aff’d on other grounds sub nom. Adenariwo v. FMC</i> , 808 F.3d 74 (D.C. Cir. 2015)	9, 11
<i>Bernard & Weldcraft Welding Equip. v. Supertrans Int’l, Inc.</i> , 29 S.R.R. 1338, 1356 n.14 (A.L.J. 2003)	11
<i>Corpco Int’l Inc. v. Straightway, Inc.</i> , 1998 WL 940257, at *7	13
<i>Distribution Servs. Ltd. v. Trans-Pac. Freight Conference of Japan and Its Member Lines</i> , 24 S.R.R. 714, 722 (FMC 1988)	13
<i>In re World Imports Ltd.</i> , 820 F.3d 576 (3rd Cir. 2016)	12
<i>Investigation of Certain Practices of Stockton Elevators</i> , 8 F.M.C. 187 (Examiner 1964) <i>aff’d</i> 8 F.M.C. 181 (FMC 1964)	10
<i>James J. Flanagan Shipping Corp. v. Lake Charles Harbor and Terminal Dist.</i> , 30 S.R.R. 8, 13 (FMC 2003)	8
<i>Ngobros and Company Nigeria v. Ocean Cargo Link, LLC et al.</i> , Docket No. 14-15, 2019 WL 7631708 (F.M.C. Dec. 17, 2019)	9
<i>Office of Workers Compensation Programs v. Greenwich Collieries</i> , 512 U.S. 267, 276 (1994). 7	
<i>The Bird of Paradise</i> , 72 U.S. 545 (1866)	12
<i>United Logistics (LAX) Inc. – Possible Violations of Sections 10(A)(1) and 10(B)(2)(A) of the Shipping Act of 1984</i> , FMC Dkt. No. 13-01, 2014 WL 5316339, at *1 (Fed. Mar. Comm’n Feb. 6, 2014)	3
<i>United States v. Miss. Valley Generating Co.</i> , 364 U.S. 520, 563 (1961)	11

Statutes

46 U.S.C. § 41107(a)	10
46 U.S.C. § 505	10
5 U.S.C. § 556(d)	2

Regulations

46 C.F.R. § 502.227(a)(2)	1
46 C.F.R. § 502.227(a)(6)	3
46 C.F.R. § 515.1(b)	10
46 C.F.R. § 545.5	13

Pursuant to 46 C.F.R. § 502.227(a)(2), Complainant TPG Pressure, Inc. (“TPG” or “Complainant”), by its respective undersigned counsel, and in compliance with the Revised Scheduling Order, hereby submits its Reply to Respondents’ Exceptions to September 10, 2024, Initial Decision (“Respondents’ Exceptions”), as follows.

SUMMARY OF ARGUMENT

Respondents challenge the Administrative Law Judge’s (“ALJ”) determinations in the Initial Decision (“ID”) that Respondents engaged in coercive collections practices with respect to three containers wrongfully withheld as hostage for payment of unrelated invoices. Respondents argue that: (i) there was no causal connection between their withholding of the containers and the demurrage charges that Respondents imposed on TPG, (ii) the withholding of the containers for a single occurrence and not a practice as required by the Shipping Act; (iii) Respondents’ contractual lien rights trump relevant provisions of the Shipping Act. None of these arguments pass muster. The ALJ correctly determined that the evidence supports the causal connection between the Respondents’ withholding of the container and the ensuing demurrage charges. Moreover, the evidence submitted by Respondents is, at best inconsistent and contradictory, and at worst, demonstrates exactly why TPG filed this case demanding all of the documentation supporting Respondents’ charges – **Respondents were in such a state of disarray that Respondents’ receipts of payment without any actual documentation of charges accrued from the carrier or terminal themselves cannot be trusted.**

As such, Respondents did not meet their burden. The ALJ recognized the undisputed fact that Epic’s written policies purport contain an unfettered right to withhold delivery of any cargo without regard to the specific prohibition of the Shipping Act, which constitutes evidence that Respondents engaged in the illegal practice on an ongoing and customary basis. Respondents’ argument that their contract trumps the statute contradicts fundamental legal precepts and the

Commission’s decisions. In sum, the ALJ correctly decided the issues Respondents raised, and the Commission should reject Respondents’ Exceptions.¹

FINDINGS OF FACT AND CONCLUSIONS OF LAW

In the ID, the ALJ correctly determined that Respondents acted unreasonably regarding three containers Respondents threatened to withhold to coerce payments from TPG. [ID at 38.] The ALJ correctly found that a delay in delivery in addition to emails from Respondents threatening to withhold cargo gave rise to the conclusion that “the preponderance of the evidence supports finding that these three containers were held to coerce payment for unrelated containers, which is unreasonable.” [ID at 37.]

Further, the ID correctly determined that the evidence show that Epic included the right to withhold containers to extract payment on any property in its “actual or constructive possession” for “any unpaid charges” in both its tariff and terms and conditions. [ID at 45 (citing CApp 10842-43; RApp 356).] Based on that, the ALJ correctly determined that such coercive collections practices were part of Epic’s “written policies and procedures” constituting “a practice occurring on a normal, customary, and continuous basis.” [ID at 45.] Accordingly, with respect to these three containers, the ID correctly concludes that Respondents engaged in coercive collections practices resulting in improper charges for demurrage, storage, and additional chassis use. [ID at 54.]

STANDARD OF REVIEW

The Administrative Procedure Act requires an initial decision to be supported with reliable, probative, and substantive evidence. *See* 5 U.S.C. § 556(d). In reviewing the ID, the Commission has all the powers which it would have, performing a *de novo* review of the findings of the ALJ.

¹ On October 4, 2024, TPG also submitted its Exceptions to the Initial Decision regarding other aspects of the ID not addressed by Respondents.

46 C.F.R. § 502.227(a)(6). The Commission generally reviews initial decisions of its Administrative Law Judges *de novo*, adopting their findings of fact and law where “they are well-reasoned and supported by evidence in the record.” *United Logistics (LAX) Inc. – Possible Violations of Sections 10(A)(1) and 10(B)(2)(A) of the Shipping Act of 1984*, FMC Dkt. No. 13-01, 2014 WL 5316339, at *1 (Fed. Mar. Comm’n Feb. 6, 2014) (reviewing administrative law judge’s decision on default).

LAW AND ARGUMENT

I. The Record Supports the Conclusion that Respondents Withheld Three of TPG’s Containers to Coerce Payments for Other Shipments, and That Such Conduct Proximately Caused Damages

Contrary to Respondents’ claims, the ID contained more than a “sparse factual analysis” supporting a conclusion that Respondents withheld TPG’s containers. The containers in question are CMAU4830227, CMAU4265316 and DRYU9980059. The ID relies on the evidence below to conclude that (1) Respondents threatened to withhold delivery of containers unless payment for unrelated containers was made promptly, (2) Respondents in fact did not deliver the containers until at least May 27, 2022, after TPG made payment, (3) Respondents paid APM Terminals \$4,700 for each of the three containers in question, and (4) Respondents charged TPG \$4,947.37 in demurrage for each container.

- Email dated May 17, 2022, in which Respondents emailed TPG stating:

No additional freight for TPG will be delivered until Omni receives the \$1.7 Million owed for freight handled and delivered, so any additional charges incurred due to delays in your remittance to Omni to conclude our relationship will be TPG’s responsibility. After the \$1.7M is received, we will deliver the remaining 81 containers or so as they arrive on a “cash” basis paid and received in advance. CApp010705.

- Email dated May 18, 2022, in which Respondents reiterated their demand, stating:

It’s a simple issue to remedy, pay what you owe us, we are not a bank, we are a transportation company, and you have far exceeded any reasonable credit limits . .

. We wish no other end than to collect monies due and conclude existing transactions - the end result is entirely in your hands, pay us what you owe us for services rendered, and all will flow smoothly. I have 30 minutes for a call . . . it will not change our stance, every day you delay payment is incurring more unnecessary charges which Omni will not pay. CApp010703-04.

- The payment receipt number CCEL1091063 from APM Terminals, which allegedly shows Epic paid \$4,700 in demurrage for each of the three containers in question on May 9, 2022. CApp006611; RApp181.

Container CMAU4830227

- (Respondents' Invoice LGB 7212676 00, for container CMAU4830227, showing that Respondents charged TPG \$4,947.36 in demurrage for that container, was provided to the ALJ but not listed in the ID. CApp007430.)
- The EIR Deliver Report showing the chassis taken out for container CMAU4830227 on May 10, 2022. CApp003559.
- The Mecca & Son Trucking Co. delivery order showing container CMAU4830227 was picked up May 10, 2022, which was the last free day, and delivered May 27, 2022. CApp003560.
- The Trailer interchange receipt at Maher Terminals showing the chassis for container CMAU4830227 was returned on June 1, 2022. CApp003561.

Container CMAU4265316

- Respondents' Invoice LGB 7212675 00, for container CMAU4265316, showing that Respondents charged TPG \$4,947.37 in demurrage for that container. CApp006427.
- The Mecca & Son Trucking Co. delivery order showing container CMAU4265316 was picked up May 11, 2022, the last free day was May 10, 2022, and the container was delivered May 27, 2022. CApp008843.

Container DRYU9980059

- Respondents' Invoice LGB 7212670 00, for container DRYU9980059, showing that Respondents charged TPG \$4,947.37 in demurrage for that container. CApp003554; RApp179.
- The Mecca & Son Trucking Co. delivery order showing container DRYU9980059 was picked up May 10, 2022, the last free day was May 10, 2022, and the container was delivered May 27, 2022. RApp180.

Respondents challenge the ID's support for its conclusions that (A) the containers were withheld, (B) the reason was to coerce, and (C) the chronology does not support the ID's conclusion.

A. The Evidence Supports The Finding That Respondents Charged TPG for Demurrage For The Containers In Question

Respondents claim that they paid demurrage charges on May 10, 2022, and for that reason, Respondents could not have held cargo to coerce a payment. [Resp. Exceptions at 4.] This is irrelevant, given the above-referenced emails Respondents' representatives sent to TPG, which are very specific. CApp010705; CApp010703-04.

Nevertheless, the record shows that free time did not end until at least May 10, 2022, so it is not clear what Respondents were paying for or why they were paying demurrage in advance. CApp003560; CApp008843; RApp180. On the other hand, invoices from Respondents to TPG indisputably establish that Respondents charged TPG for whatever payments were made that day as "demurrage.". CApp007430; CApp006427; RApp179.

The only thing the date of Respondents' payment establishes is that Respondents recordkeeping was so disorganized that they might have paid APM Terminals some amount of money when the "free time" according to Mecca & Son Trucking Co. was over and there may

have been *no demurrage due at all*, and charged TPG for the pleasure of doing so. This is exactly why TPG filed this case demanding all of the documentation demonstrating the propriety of the charges, i.e., the underlying invoices from the carriers and other providers. **Respondents were in such a state of disarray that Respondents' receipts of payment without any documentation from the actual service provider of charges accrued cannot be trusted.** Even after the filing of this action, Respondents failed to produce reliable and consistent documentation that would support the charges they imposed on TPG.

Moreover, Respondents' documents also show inconsistent delivery and return dates. According to the Maher Terminal trailer interchange receipt, container CMAU4265316 was returned on June 1, 2022. Rapp545. However, according to the Mecca & Son Trucking delivery order, this container was delivered on May 27, 2022. Rapp548. The same inconsistency applies to container CMAU4830227 where the Mecca & Son delivery order shows the delivery date of May 27, 2022, while the Maher Terminal interchange receipt shows the return date of June 1, 2022. Rapp552. Notably, Respondents failed to produce the Maher Terminal interchange receipt for container DRYU9980059 in an apparent attempt to conceal the inconsistency. This further demonstrates that Respondent's purported evidence lacks credibility and should not be given any weight.

In any case, the discrepancy between the May 27, 2022, return date according to the Mecca & Son delivery order and the later return date of June 1, 2022, according to the Maher Terminal interchange receipt, does not affect the analysis or the ALJ's conclusion as to the unreasonableness of Respondents. TPG likewise addressed this issue in its Reply brief:

Respondents withheld these containers since at least May 17, 2022, seeking to extort \$1.7 million from TPG, and in fact, TPG had made a first payment on May 20, 2022. (Basiri Decl. ¶ 26). Why delivery did not occur until May 27 or June 1, 2022 remains unclear: either Respondents withheld TPG's cargo on purpose—

which is unlawful—or Respondents simply forgot about the cargo—which would be negligent and further indicia of Respondents’ constant state of chaos.

[TPG Reply at 26.] Respondents’ attempt to obfuscate the issues by claiming they could not be unreasonable if they released the cargo prior to payment by TPG also fails. The question is not the timing of the cargo’s release vis-à-vis payment by TPG; rather, the question is whether Respondents were unreasonable in refusing to release cargo unrelated to the payments due. The ALJ correctly found that Respondents did withhold delivery of the unrelated cargo and that such withholding was unreasonable.

B. Respondents Delayed Delivery to TPG to Coerce Payment of Unrelated Invoices

Next, Respondents’ statement that the reason for the 17-day lag time is “not clear from the record” in the face of emails from its own representatives specifically declaring this purpose is disingenuous. TPG has put forth evidence showing that Respondents were holding these containers hostage. Respondents utterly failed to present any record evidence to the contrary. There is no “evenly balanced” evidence, as Respondents suggest. [Resp. Exceptions at 5.] The evidence supports the ALJ’s findings in favor of TPG on this issue – Respondents specifically stated to TPG:

No additional freight for TPG will be delivered until Omni receives the \$1.7 Million owed for freight handled and delivered, so any additional charges incurred due to delays in your remittance to Omni to conclude our relationship will be TPG’s responsibility. CApp010705.

Respondents’ citation to *Director, Office of Workers Compensation Programs v. Greenwich Collieries*, 512 U.S. 267, 276 (1994) is of no import. [Resp. Exceptions at 5.] That is simply a Supreme Court case that cites to a provision of the Administrative Procedure Act. It does not support Respondents’ argument. The ID’s conclusion is therefore specifically supported by the evidence.

C. The Chronology Supports TPG's Losses

Respondents argue that there exists no “proof of pecuniary” loss with respect to the three containers because the demurrage charges were paid on May 10, 2022, prior to the wrongful withholding threats. Again, there was no demurrage due on May 10, 2022 because according to Mecca & Son Trucking Co. delivery order May 10, 2022, was the last day of free time. Nevertheless, Respondents cite to *James J. Flanagan Shipping Corp. v. Lake Charles Harbor and Terminal Dist.*, 30 S.R.R. 8, 13 (FMC 2003) in support. However, the question in that case was whether the complainant—which had already prevailed in establishing violations of the Shipping Act—was also entitled to damages for lost profits. The ALJ determined that Flanagan could not establish that the respondent’s violations were the sole cause of lost profits. Here, Respondents passed through to TPG charges Respondents allegedly paid for demurrage, plus a fee to which the parties did not agree. That Respondents allegedly paid demurrage charges that were not due and passed those improper charges onto TPG is only further proof that Respondents failed to timely provide TPG with sufficient documentation to assess the propriety of the charges assessed. The ID therefore correctly concludes that TPG suffered damages with respect to the three containers. [ID at 46.]

II. The Record Supports the Conclusion That Respondents Had a “Practice” of Engaging in Coercive Collection Practices

Respondents claim that the ID is incorrect in determining Respondents maintained a “practice” of coercively collecting from TPG because Epic contracted for a general lien in its tariff and terms and conditions. [Resp. Exceptions at 5.] However, the ID correctly concludes that maintaining this lien as part of its policies and procedures constitutes a practice, and such practice occurred on a normal, customary, and continuous basis:

The evidence shows that Epic included the right to withhold containers to extract payment on any property in its “actual or

constructive possession” for “any unpaid charges” in both its tariff and terms and conditions. CApp 10842-43; RApp 356. Thus, these coercive collection practices were part of their written policies and procedures, which is sufficient to find that they were a practice occurring on a normal, customary, and continuous basis.

[ID at 45.]

Respondents ignore the ALJ’s reference to Federal Rule of Evidence 406, as argued by TPG in its Reply, to establish that “[e]vidence of a person’s habit or an organization’s routine practice” is admissible ‘to prove that on a particular occasion the person or organization acted in accordance with the habit or routine practice.’” [ID at 45; Reply at 24, 27 n.5.] Epic’s establishment of policies and procedures that unlawfully expand its lien rights is a quintessential routine practice, occurring on a normal, customary, and continuous basis, as correctly determined by the ALJ. *See also Adenariwo v. BDP Int’l*, Docket No. 1921(I), 2013 WL 12618258 (SO Mar. 7, 2013) (“*Adenariwo (SO)*”), *aff’d* 2014 WL 13110647 (FMC Feb. 20, 2014) (*Adenariwo (FMC)*), *partially aff’d on other grounds sub nom. Adenariwo v. FMC*, 808 F.3d 74 (D.C. Cir. 2015).

In conclusion on this section, Respondents argue that the ALJ failed to consider evidence of whether Respondents’ actions were actually occurring on a “normal, customary, and continuous basis.” [Resp. Exceptions at 7.] The ALJ did so. As the ALJ explained, the issue in this case was not simply whether the prohibited practice actually occurred but the undisputed fact that the **“coercive collection practices were part of their written policies and procedures.”** That was “sufficient to find that they were a practice occurring on a normal, customary, and continuous basis.” [ID at 45.] Thus, the ALJ clearly considered this and placed it prominently in the ID.

Respondents’ case law in support of its arguments regarding this issue does not move the needle. *Ngobros and Company Nigeria v. Ocean Cargo Link, LLC et al.*, Docket No. 14-15, 2019 WL 7631708 (F.M.C. Dec. 17, 2019) is inapposite. In *Ngobros*, the ocean transportation intermediary (“OTI”) delivered cargo to the wrong port and sought an additional payment to

deliver the cargo to the correct port. *Id.* at *3. The Commission found that such a single act of omission does not rise to the violation of the of the Shipping Act. *Id.* The issue was not whether *Ngobros* that the OTI had written policies that would allow it such conduct. Here, to the contrary, the issue is that Epic had such policies, and the existence of such policies, coupled with the fact of the prohibited conduct was sufficient to find that the practice occurred on “normal, customary, and continuous basis.” The ALJ did not base her finding of a “practice” on a single act or omission. ALJ expressly noted that the finding was based on the existence of written policies that allow such violation. This is also consistent with Commission practice.²

Respondents also cite to *Investigation of Certain Practices of Stockton Elevators*, 8 F.M.C. 187 (Examiner 1964) *aff’d* 8 F.M.C. 181 (FMC 1964), a decision on which they had relied in their response brief to argue that six instances of charging unpublished rates does not constitute “practice.” Such reading grossly misconstrues *Stockton*. As TPG has already explained [Reply at 25], the primary focus of *Stockton* was the Examiner’s finding that the cited instances in fact served the public interest, and that “[n]o one was denied anything, prejudiced, disadvantaged or discriminated against in any way.” *Id.* at 201. In any case, even if Respondents’ reading is correct, which is not, here, again, the ALJ focused not simply on an occurrence but on the undisputed

² C.f., Statement by Commissioners Carl W. Bentzel and Max Vekich on FMC’s approval of the \$2 million Settlement Agreement with Hapag-Lloyd, (June 10, 2022), available at <https://www.fmc.gov/statement-by-commissioners-carl-w-bentzel-and-max-vekich-on-fmcs-approval-of-the-2-million-settlement-agreement-with-hapag-lloyd/> (Stating “we believe that under 46 U.S.C. § 41107(a), each day of a continuing violation constitutes a separate violation. As determined by the ALJ, Hapag-Lloyd’s unjust and unreasonable practice was to assess detention and demurrage when there were insufficient appointments available. Accordingly, each day that this practice was in place should constitute a separate violation.”); 46 U.S.C. § 505 (“Each day of a continuing violation is a separate offense” with respect to knowingly and willfully violating a regulation or order of the Commission or the Secretary of Transportation); 46 C.F.R. § 515.1(b) (stating “Each day of a continuing violation shall constitute a separate violation” with respect to violations for operating as an OTI without a proper license or registration).

existence of the written policy, which specifically allowed the unjust conduct prohibited by the Shipping Act, in which Respondents engaged, that caused TPG's losses.

III. The ID Correctly Determines That Respondents Unlawfully Exercised Their Lien Rights, Which Are Improper as a Matter of Law and Commission Precedent

Contrary to Respondents' assertions, TPG correctly argued that Respondents' practice of threatening to withhold cargo to coerce payment of unrelated invoices is not a valid exercise of lien rights. [Reply at 28.] The Commission's longstanding precedents support this conclusion, and the ALJ was correct. As cited in the ID [at 29] "[t]he act of holding a shipment for an unrelated shipment's charges is an unreasonable practice under the Shipping Act." *See Adebisi A. Adenariwo v. BDP International, Zim Integrated Shipping, Ltd. and its Agent (Lansal) et al.*, Dkt. No. 1921(I), 2013 WL 12618258 (Mar. 7, 2013). "[D]isputes over earlier unrelated shipments cannot be used by either a carrier or a shipper as justification for refusing to release the cargo or to pay lawful freight money." *Bernard & Weldcraft Welding Equip. v. Supertrans Int'l, Inc.*, 29 S.R.R. 1338, 1356 n.14 (A.L.J. 2003)).

A. Regardless of Whether the Parties Contractually Agreed to Epic's Lien, the Lien Is Unenforceable

Respondents' counter that the parties contractually agreed to Epic's lien misses the mark. [Resp. Exceptions at 7.] Parties cannot contract to violate the Shipping Act. Regardless of whether Epic's lien was contained within the parties' contract, it is unenforceable as a matter of law.

It is a fundamental precept that a party cannot contract out from statutory mandate. *United States v. Miss. Valley Generating Co.*, 364 U.S. 520, 563 (1961) ("a statute frequently implies that a contract is not to be enforced when it arises out of circumstances that would lead enforcement to offend the essential purpose of the enactment"). The ALJ correctly remarked that "Commission case law is clear that withholding shipments due to payments owed for other containers is unreasonable." [ID at 37.] Further, "Commission case law is clear . . . that the parties cannot

contract in a manner that violates the Shipping Act.” [ID at 37-38.] The ID cited to the *Adenariwo* decision to correctly conclude that “Respondents acted unreasonably by threatening to hold containers and holding three containers to extract payments for other containers.” [ID at 35-38.]

Respondents weakly argue, with no support, that the Shipping Act “should not” interfere with parties’ contract rights. Unfortunately for Respondents, it does. On this issue, Respondents once again rely on case law that does not involve the Shipping Act, or violations thereof, in an attempt to support their position in contravention of Commission precedent. [Resp. Exceptions at 8 (citing *The Bird of Paradise*, 72 U.S. 545 (1866); *In re World Imports Ltd.*, 820 F.3d 576 (3rd Cir. 2016).] TPG already addressed these decisions in its Reply. [Reply at 20 n.2.] Both *Bird of Paradise* and *World Imports* concern maritime liens for unpaid ocean freight charges after the shippers had gone bankrupt. The issues involved the priority status of maritime liens on the cargoes considering the shipper’s bankruptcy. Neither case addresses the Shipping Act. Both cases are clearly distinguishable and neither supports enforceability of Epic’s Tariff provisions or their reasonableness under the Shipping Act. Reliance on case law that does not question violations of the Shipping Act is misguided and unhelpful.

Respondents overlook the fundamental problem, which is that Epic’s assertion of its lien rights violates the Shipping Act because such a lien is **unreasonable**. The ALJ found as much: “Epic’s tariff and terms and conditions do not make its actions reasonable.” [ID at 38.] Accordingly, the contractual lien is unlawful and exercising the lien was unreasonable and in violation of the Shipping Act.

B. The ID Is Correct in Concluding That Epic’s Exercise of the Lien Is Not Consistent with the Incentive Principle

Further, contrary to Respondents’ arguments, the ID is correct in concluding that Epic’s exercise of the lien is inconsistent with the “incentive principle.” [ID at 36 (“Prohibiting common

carriers with billing disputes from holding cargo unrelated to the dispute is consistent with the incentive principle because it will keep commerce flowing and alleviate port congestion.”.)] As the ID quotes, the incentive principle, codified under 46 C.F.R. § 545.5, provides: “In assessing the reasonableness of demurrage and detention practices and regulations, the Commission will consider the extent to which demurrage and detention are serving their intended primary purposes as financial incentives to promote freight fluidity.” [ID at 36.]

As the Final Interpretive Rule states: “the ‘incentive principle’ is simply another way of stating the preexisting test for reasonableness under section 41102(c): Whether a regulation or practice is ‘tailored to meet its intended purpose.’” Interpretive Rule on Demurrage and Detention Under the Shipping Act, 85 FR 29638-01 n.42 (quoting *Distribution Servs. Ltd. v. Trans-Pac. Freight Conference of Japan and Its Member Lines*, 24 S.R.R. 714, 722 (FMC 1988)).

Commission precedent is clear that withholding cargo for unrelated invoices is unreasonable. Thus, the incentive principle cannot support Respondents’ exercise of lien rights over unrelated charges, having already found that it is an unreasonable practice.

C. The ID Correctly Finds That Respondents Held Cargo to Obtain Additional Fees or to Collect an Unreasonable Debt

Respondents argue that they did not hold cargo to obtain additional fees or to collect an unreasonable debt. [Resp. Exceptions at 9.] For the avoidance of doubt, The ALJ correctly determined that Respondents fail to point to evidence in the record that TPG agreed to an additional administrative fee. [ID at 34.] Further, the ALJ correctly cites to Commission case law that “cargo cannot be held to obtain additional fees or to collect an unreasonable debt.” [ID at 35 (citing *Corpco Int’l Inc. v. Straightway, Inc.*, 1998 WL 940257, at *7).] The ALJ also correctly concluded that Respondents engaged in the unreasonable practice of imposing markups on pass-through charges. [ID at 46; 54.] TPG reserves its arguments as to entitlement to additional damages based

upon the improper demurrage and detention charges as argued in its Exceptions. [*See generally* TPG Exceptions.]

CONCLUSION

Based on the foregoing, the ALJ's conclusions in the Initial Decision that (1) Respondents engaged in "coercive collection practices" in violation of the Shipping Act; and that (2) such conduct caused TPG damages is correct. Respondents' Exceptions to Initial Decision do not support the conclusion that the ALJ erred with respect to these matters. Therefore, the Commission should confirm the Initial Decision's findings of fact and conclusions of law concerning the coercive collections practices committed by Respondents when withholding delivery of three containers to coerce payment by TPG. Further, as stated in TPG's Exceptions to the Initial Decision, TPG is entitled to an award of reparations in its favor in the amount of \$427,256.39, plus interests, costs, and attorneys' fees, in addition to an Order (1) compelling Respondents to cease and desist from violations of the Shipping Act, and (2) putting in place lawful and reasonable practices to preclude Respondents from demanding that TPG pay unsubstantiated and unlawful charges.

Dated: October 28, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on October 28, 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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